



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

NOV 14 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11574

EXPIRATION DATE: April 15, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: Jet Corr, Incorporated
Conyers, GA
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of approximately 2,000 DOT UN 4G fiberboard boxes which have been inadvertently marked UN 4G/Y5/S/95 instead of UN 4G/Y5/S/95, for the shipment of fireworks Division 1.4G. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 107, Appendix B to Subpart B, Paragraph (1) and (2); Sections 172.203(a); 172.301(c) and 178.503(a) 5 (ii).
5. BASIS: This exemption is based on the application of Jet Corr, Incorporated dated October 13, 1995 and supplemental letter dated October 18 and November 6, 1995, submitted in accordance with 49 CFR 107.113 based on a determination that it is necessary to preclude a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Fireworks (EX-8309190)	1.4G	UN0336	II

7. PACKAGING AND SAFETY CONTROL MEASURES: Packagings prescribed are approximately 2,000 DOT UN 4G fiberboard boxes which have inadvertently been marked UN 4G/Y5/S/95 instead of the required UN 4G/Y5/S/95.

8. SPECIAL PROVISIONS:

a. Offerors may use the packaging authorized by this exemption for shipment of the hazardous material described in paragraph 6 and must have a copy of the current exemption at each facility from which such offering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. The marking requirements of 49 CFR Part 107, Appendix B, to Subpart B, Paragraphs (1) and (2) and sections 172.203(a) and 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: None as a condition of this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

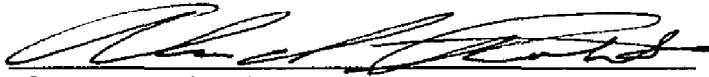
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 14 1995

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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